

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: September 10, 2026

#	Case Name	Tentative
1.	30-2024-01419054 Brandon vs. Teel	1. Motion for Summary Judgment Defendant Rhonda Teel (“Defendant”) moves for summary judgment as to the first cause of action for general negligence and second cause of action for strict liability in this dog bite case. Plaintiff Christopher Brandon (“Plaintiff”) opposed the motion. Defendant argues: (1) the first cause of action for general negligence is barred because (a) Defendant did not own the dog or keep the dog, (b) Defendant had no knowledge of the dog’s existence on the property, and (c) Defendant did not have knowledge of any alleged dangerous propensities of the dog; and (2) the second cause of action for strict liability is barred because (a) Defendant did not have actual knowledge of the dog’s existence on the property, (b) Defendant did not have actual knowledge of the dog’s dangerous propensities, and (c) Defendant did not negligently maintain the premises allowing the dog to escape. The parties agree that Defendant Rhonda Teel owns the property on which the dog bite incident occurred. I. FIRST CAUSE OF ACTION FOR GENERAL NEGLIGENCE Plaintiff’s first cause of action is for general negligence. Defendant argues that she is entitled to summary adjudication of the first cause of action for general negligence because (a) Defendant did not own the dog or keep the dog, (b) Defendant had no knowledge of the dog’s existence on the property, and (c) Defendant did not have knowledge of any alleged dangerous propensities of the dog. “Under California law, a landlord owes a duty of care to his tenant’s invitees to prevent injury from the tenant’s vicious dog when the landlord has ‘actual knowledge’ of the dog’s vicious nature in time to protect against the dangerous condition on his property.” (<i>Yuzon v. Collins</i> (2004) 116 Cal.App.4th 149, 152 and <i>Chee v. Amanda Goldt Property Management</i> (2006) 143 Cal.App.4th 1360, 1369 [“it is well established that a landlord does not owe a duty of care to protect a third party from his or her tenant’s dog unless the landlord has actual knowledge of the dog’s dangerous propensities, and the ability to control or prevent the harm.”].) “[A] duty of care may not be imposed on a landlord without proof that he knew of the dog <u>and</u> its dangerous propensities.” (<i>Chee v. Amanda Goldt Property Management</i> (2006) 143 Cal.App.4th 1360, 1369–1370 [<u>underline emphasis added</u>].) “Because the harboring of pets

is such an important part of our way of life and because the exclusive possession of rented premises normally is vested in the tenant, ... *actual* knowledge and not mere constructive knowledge is required.” (*Ibid.*) “For this reason ... a landlord is under no duty to inspect the premises for the purpose of discovering the existence of a tenant’s dangerous animal; only when the landlord has actual knowledge of the [dangerous] animal, coupled with the right to have it removed from the premises, does a duty of care arise.” (*Id.*, pp. 1369–1370 [underline emphasis added].)

“[A] defendant’s actual knowledge may be shown, not only by direct evidence, but also by circumstantial evidence.” (*Yuzon v. Collins* (2004) 116 Cal.App.4th 149, 163 [citing *Uccello v. Laudenslayer, supra*, 44 Cal.App.3d 504, 514, fn. 4].) “Hence, his denial of such knowledge will not, per se, prevent liability.” (*Ibid.*) “However, actual knowledge can be inferred from the circumstances only if, in the light of the evidence, such inference is not based on speculation or conjecture.” (*Ibid.*) “Only where the circumstances are such that the defendant ‘must have known’ and not ‘should have known’ will an inference of actual knowledge be permitted.” (*Ibid.*)

Here, the Court finds that Defendant Rhonda Teel is the owner of the property at issue but she has never lived at the property and is not the owner of the dog at issue. (See Defendant Rhonda Teel’s Deposition, p. 14.) Rather, Defendant Rhonda Teel’s son Terry and granddaughter Amanda live at the property. (See Defendant Rhonda Teel’s Deposition, pp. 15-16.)

The Court further finds that Defendant Rhonda Teel knew that the dog lived on her rental property but she did not know that the dog had any dangerous propensities. (See Defendant Rhonda Teel’s Deposition, pp. 22-25 and 36.)

Plaintiff presents no evidence that creates a triable issue of material fact regarding Defendant Rhonda Teel’s knowledge about the dog’s dangerous propensities. Plaintiff testified in his deposition that Dianna (who’s car Plaintiff appears to have been servicing at the time of the incident) told Plaintiff “oh, I meant to tell you that the dog – the dog is – is not friendly.” (Plaintiff’s Deposition, pp. 49 and 65.) Still, this does not establish that *Defendant Rhonda Teel* had such knowledge that the dog was “not friendly.”

Rather, the evidence before the Court only establishes that Defendant Rhonda Teel did not have actual knowledge of the dog’s dangerous propensities.

For this reason, the motion for summary adjudication is **GRANTED** as to the first cause of action for negligence.

II. SECOND CAUSE OF ACTION FOR STRICT LIABILITY

Plaintiff’s second cause of action is for strict liability.

Civil Code section 3342 governs strict liability in dog bite cases. Section 3342 states:

		“The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner’s knowledge of such viciousness. A person is lawfully upon the private property of such owner within the meaning of this section when he is on such property in the performance of any duty imposed upon him by the laws of this state or by the laws or postal regulations of the United States, or when he is on such property upon the invitation, express or implied, of the owner.” (Civ. Code, § 3342, subd. (a).) As discussed above, Defendant carried her burden to establish that she is not the owner of the dog at issue. She is not the registered owner and does not live at the property where the dog lives. Plaintiff proffers no evidence that Defendant Rhonda Teel is the owner of the dog at issue or acts in any capacity as the owner of the dog. Plaintiff argues that Defendant Rhonda Teel should be liable under section 3342 as a “keeper” of the dog. Plaintiff cites to <i>Hillman v. Garcia-Ruby</i> (1955) 44 Cal.2d 625 for this contention. Plaintiff cites to the following discussion in <i>Hillman</i>: “The keeper of an animal of a species dangerous by nature, or of any animal which he knows, or has reason to know, to have dangerous propensities, is liable, without wrongful intent or negligence, for damage to others resulting from such a propensity.” [Citations.] The liability of the keeper is absolute, for “[t]he gist of the action is not the manner of keeping the vicious animal, but the keeping him at all with knowledge of the vicious propensities. [Citation.] In such instances the owner is an insurer against the acts of the animal, to one who is injured without fault, and the question of the owner's negligence is not in the case. [Citations.]” (<i>Hillman v. Garcia-Ruby</i> (1955) 44 Cal.2d 625, 626.) Plaintiff’s authority would require that Defendant Rhonda Teel have knowledge that the dog at issue had dangerous propensities. As discussed above, there is no evidence before the Court that Defendant Rhonda Teel had knowledge that the dog at issue had dangerous propensities. The motion for summary adjudication is GRANTED as to the second cause of action for strict liability. Accordingly, based on applicable law and as set forth herein, said Motion is GRANTED in its entirety. Defendant Rhonda Teel to give notice.
2.	30-2023-01351588 Shulman Roofing, Inc vs. Nguyen	1. Motion for Summary Judgment Plaintiff and Cross Defendant Shulman Roofing, Inc. (“SRI”) and Cross-Defendant Joe Shulman (“Shulman”) move for summary adjudication pursuant to CCP§ 437c as to certain causes of action set forth in Defendant and Cross-Complainant’s (referred to herein as “Nguyen” or “RP”) Fourth Amended [Cross] Complaint.

This motion was originally on calendar for 7/16/2026. However, because RP Nguyen’s opposition was untimely, the Court found good cause to continue the matter to today’s date and have Nguyen re-file an opposition with minimal footnotes. The Court ordered an opposition filed by 8/21. Nguyen filed his opposition on 8/24—no explanation for the untimeliness was provided. Moving parties (“MP”) did not object to the untimeliness in the reply. Also, RP was allowed to file an opposition, not new evidence or a new separate statement—both of which he did. Moreover, Nguyen’s separate statement (ROA 172) fails to comply with CRC 3.1350(h) in that he fails to list MP’s evidence in the left-hand column of the page.

RP Nguyen also made a request to continue this matter to obtain the deposition testimony of Shulman’s PMQ. Decl. of Holmes¶36, 37.

If the opposing party shows by declaration that essential evidence “may exist but cannot, for reasons stated, be presented, the court shall deny the motion” or continue it for a reasonable period, or “make any other order as may be just.” [CCP § 437c(h); see *Bahl v. Bank of America* (2001) 89 CA4th 389, 395.] In determining what orders “may be just,” the court may consider whether the party seeking the continuance has been **diligent** in its discovery efforts.

Failure to request a continuance to conduct further discovery **before the opposition is due waives the right to further discovery.** [*Lewinter v. Genmar Indus., Inc.* (1994) 26 CA4th 1214, 1224.; *Roman v. BRE Properties, Inc.* (2015) 237 CA4th 1040, 1056—opposing party must request continuance and show, either in opposition papers or in a separate application filed no later than the opposition papers, that discovery is needed to oppose motion (pendency of motion to compel further discovery insufficient to trigger continuance of summary judgment motion)]

Here, the opposition was due 6/26/2026. Nguyen did not make the request for a continuance for PMQ deposition in the original untimely opposition. As such, the request is waived. Also, he did not seek the deposition of the PMQ until July 2026, and thus, was not diligent. Therefore, the Court will not again continue this motion.

Issue No. 1: SRI and Shulman did not breach the covenant of good faith and fair dealing because it is duplicative of Nguyen’s first cause of action for breach of contract.

Cross-Defendant argues because the implied covenant claim is “predicated upon the same facts as the breach of contract claim and seeks the same damages,” it “may be disregarded as superfluous” (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395, 1491) To that end MP presents evidence that Nguyen has expressly admitted in verified discovery responses that his First Cause of Action for Breach of Contract, and his Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing are predicated upon identical facts. [UMF No. 86, See Davis Decl., Ex 40 (Special Interrogatory Nos. 21 and 24); Ex 41 (Nguyen’s Supplemental Responses to Special Interrogatory Nos. 21 and 24, pp. 83-95 and 109 121).] MP also argues Nguyen seeks the same damages for recovery of his breach of contract claim and his breach of the implied covenant of good faith and fair dealing claim. See Fourth Amended Cross Complaint prayer relating to the 1st and 2nd causes of action.

Furthermore, Nguyen’s responses to UF 86 and 87 offer only a legal argument and purported conduct which was not included within the express terms of the contract. However, “The implied covenant of good faith and fair dealing is limited to assuring compliance with the *express terms* of the contract, and cannot be extended to create obligations not contemplated by the contract.” [*Pasadena Live v. City of Pasadena* (2004) 114 Cal.App.4th 1089, 1094.]

Motion is GRANTED as to Issue 1.

Issue No. 2: SRI and Shulman were not negligent because there is no evidence that (1) SRI and Shulman breached any duty owed to Nguyen and (2) Nguyen’s cause of action is barred by the economic loss doctrine.

“An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of injuries suffered by the plaintiff.” [*Mintz v. Blue Cross of California* (2009) 172 Cal.App.4th 1594, 1609.]

MP argues its expert has opined that SRI and Shulman’s conduct was reasonable and not negligent. [UF 95-98] MP submits the declaration of Gary Weaver who declares, “I am a roofing, waterproofing, and building enclosure expert and principal of Atlas Consulting Group / Atlas Consulting Inc. I have been qualified as an expert witness for forty years in the fields of roofing, waterproofing, sheet metal, exterior plaster, moisture intrusion, quality assurance, inspection, testing, and forensic investigation in numerous States and California courts...” (Decl. Weaver¶2). Mr. Weaver declared that, “Based on my inspection, testing, observations, education, training, and experience, it is my opinion that the new roof was installed correctly and in a manner consistent with applicable industry standards for the roofing work performed.” (Decl. Weaver¶9.)

In Opposition, RP submits the declaration of his own expert, Peter Lattey, who is an architect. He states, “I know and understand building design and construction from all points of view.” (Decl. of Lattey¶7.)

While his declaration appears objectionable as to some issues, he does declare that, “SRI was negligent in leaving the horizontal groove open after removing the counter flashing. 27. It was the responsibility of SRI to install caulking, sealant or stucco patch to close this horizontal groove after removing the existing counter flashing to maintain the waterproof integrity of the building envelope.” (Id¶26.) This creates a triable issue of material fact as to issues of duty and breach.

MP also argues the negligence claim is barred by the economic loss rule.... “...there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” [*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.] Here, the economic loss rule appears inapplicable because the cause of action goes beyond what was contracted for: that is Nguyen contracted for a new roof, not a new roof that allowed pools of water to exist, etc. (See Fourth Amended Cross Complaint¶125.) And, by virtue of these allegations alone, Cross-Complainant pled damages to the property—which takes it out of the economic loss rule. Nguyen provides evidence of such property damage through his declaration wherein he states, “Cuts and/openings either made or left in the stucco on the first level of the roof system (which I personally observed) that caused water damage to the property (which I also personally observed) and then spent hours repairing in an attempt to stop the water amage to the interior of the first level near the ceiling in one of the units of the house.” (Decl. Nguyen¶74A.)

As such, SAI as to Issue 2 is DENIED.

Issue No. 3: There is no evidence that Cross-Defendants (1) fraudulently induced Nguyen to enter into the contract, (2) made any misrepresentations to Nguyen, or (3) concealed any material facts.

Initially, this cause of action is three fraud-based causes of action in one—fraudulent inducement, misrepresentations, and concealment. See Fourth Amended Cross-Complaint¶¶129-158.

MP first argues that the fraud cause of action is a restatement of the contract cause of action. Even if this is true, it does not show that either one or more elements of the cause of action cannot be established or that there is a complete defense to the fraud cause of action. (CCP§437c(p)(2).)

Next, MP argues that Nguyen has no evidence of concealment. (Motion page 13:15). However, MP fails to address specific elements that cannot be established. MP also fails to address the elements and evidence relating to the fraudulent inducement aspect of the cause of action or the misrepresentation portion of the cause of action. As such, MP has not sustained its initial burden.

Even if, assuming arguendo, that MP had sustained its initial, substantive burden, almost all of the “fraud” facts are disputed; and thus, create a triable issue of material fact. (See Separate Statement Nos. 103, 106, 107, 108, 109, 112, 113, 114, 115, 116, 117-133).

As such, SAI is DENIED as to Issue No. 3.

Issue No. 4: Nguyen’s fifth cause of action for violation of Bus. & Prof. Code § 17200 et seq. fails because there is no evidence that SRI and Shulman engaged in any unlawful, unfair or fraudulent conduct.

SAI is DENIED as to Issue 4 as rising and falling with Issue 3.

EVIDENTIARY OBJECTIONS:

Objections to Declaration of Peter Lattey

1. Overruled
2. Overruled
3. Sustained
4. Sustained
5. Not material
6. Not material
7. Not material
- 8-10. Overruled
11. Sustained
12. Not material
13. Overruled
14. Not material
15. Overruled
16. Overruled
17. Sustained
18. Overruled
- 19.-24. Sustained.
- 25.-31. Overruled

Objections to Declaration of Mark Holmes

Not relevant to the disposition of the motion

Objection to Declaration of Tuyet Nguyen

No. 10, 13, 14, 16, 27, 20, 21, 22, 24 sustained. Otherwise, overruled.

Moving Party to give notice.

3.	30-2024-01434147 Darling vs. SRPP III, LP	1. Case Management Conference 2. Motion-Other (for Evidentiary Hearing Regarding Discovery Misconduct) 3. Motion to Disqualify Attorney of Record 4. Motion to Quash Subpoena 5. Order to Show Cause <u>Motion to Quash Subpoena and for Protective Order (ROA 221)</u> Plaintiffs Oriann Clair Darling and Lucas Budwig (“Plaintiffs”) seek an order quashing the medical records subpoena issued by Defendants SRPP III, LP and Sullivan Properties Inc. (“Defendants”) to Eduard Drannikov, MD. Plaintiffs also seek a protective order and monetary sanctions. Defendants represent that they have withdrawn the subject subpoena. Accordingly, the Court hereby deems the subpoena WITHDRAWN. The subpoena having been withdrawn, the motion is now MOOT insofar as it seeks to quash the <u>subpoena</u>. Plaintiffs purport to seek a protective order to limit the scope of production of Plaintiffs Darling’s medical records, ostensibly pursuant to the now-withdrawn subpoena. However, the proposed protective order is a protective order governing the exchange of confidential information. (See Darling Decl., Exh. 5.) This Court already—more than a year ago—signed a stipulated protective order governing the exchange of confidential materials. (ROA 130.) Plaintiffs have not made any showing that the previously-entered protective order is now inadequate. Further, a protective order governing the exchange of confidential materials does not accomplish Plaintiffs’ stated objectives of limiting the scope of medical records to be produced. Finally, as the subject subpoena has been withdrawn, there is nothing before the Court upon which the Court could base a protective order of the type requested by Plaintiffs. The Court would be ruling in a vacuum. Accordingly, Plaintiffs’ request for a <u>protective order</u> is DENIED. Plaintiffs’ request for monetary <u>sanctions</u> pursuant to CCP § 2031.060(h) is DENIED. <u>Motion for Evidentiary Hearing re Discovery Misconduct (ROA 271)</u> Plaintiffs’ motion for evidentiary hearing regarding discovery misconduct is DENIED. Plaintiffs seek an evidentiary hearing to resolve various discovery disputes. However, the evidentiary hearing is not sought in connection with any particular motion. Further, the Court is not convinced at this time that live testimony would be necessary, or even helpful, to resolve any of the discovery disputes identified in this motion. <u>Motion to Disqualify Attorney</u> Plaintiffs Oriann Clair Darling and Lucas Budwig’s (“Plaintiffs”) motion to disqualify attorneys Mark Heinish, Kimia Karami and the law firm of Hinshaw & Culbertson LLP (collectively, the “Attorneys”) from representing Defendants in this action is DENIED. “A trial court's authority to disqualify an attorney derives from its inherent power, codified at Code of Civil Procedure section 128, subdivision (a)(5), to control the conduct of its ministerial officers and of all other persons connected with its proceedings in furtherance of justice. Disqualification may be ordered as a prophylactic measure against a prospective ethical violation likely to have a substantial
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continuing effect on future proceedings.” (*Doe v. Yim* (2020) 55 Cal.App.5th 573, 581 (citations omitted).)

Plaintiffs’ motion is made on the grounds that the Attorneys’ representation of Defendants in this action violates California Rules of Professional Conduct Rules 3.7 and 1.7, primarily because attorneys Heinish and Karami are necessary witnesses to issues in this case.

Disqualification under Rule 3.7.

Rule 3.7, entitled “Lawyer as Witness,” reads, in pertinent part:

(a) A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless:

- (1) the lawyer’s testimony relates to an uncontested issue or matter;
- (2) the lawyer’s testimony relates to the nature and value of legal services rendered in the case; or
- (3) the lawyer has obtained informed written consent from the client. . .

(b) A lawyer may act as advocate in a trial in which another lawyer in the lawyer's firm* is likely to be called as a witness unless precluded from doing so by rule 1.7 [Conflict of Interest: Current Clients] or rule 1.9 [Duties to Former Clients].

Plaintiffs contend that the Attorneys are witnesses to conduct concerning various discovery disputes. Namely, the failure to produce the LP Agreement, even after ordered to do so by this Court; producing inconsistent responses to Form Interrogatory No. 4.1 (regarding disclosure of insurance policies) that Plaintiffs contend could not have been a mistaken discrepancy or oversight; failing to cooperate with making Kris Kipness and other representatives of Defendants available for depositions; and failing to disclose how, when, or whether their clients had searched Microsoft Teams for responsive documents.

Plaintiffs contend that the entire law firm of Hinshaw & Culbertson LLP should be disqualified pursuant to Rule 1.7 on the basis of Heinish and Karami’s conduct because the firm now has a conflict of interest with its clients (Defendants), as Defendants refused to provide details about their Microsoft Teams search on the advice of counsel, and counsel now contends that responses to discovery were based on information supplied by Defendants.

“ ‘In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) “ ‘whether counsel's testimony is, in fact, genuinely needed” ’ ”; (2) “the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons”; and (3) “the combined effects of the strong interest parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.” ’ ” (*Geringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822.)

All of the conduct that allegedly makes the Attorneys witnesses consists of garden variety discovery disputes. These are pretrial matters that are collateral to the issues to be determined at trial. Plaintiffs may seek to resolve these matters through the mechanisms provided by the Discovery Act, but they do not constitute grounds for disqualification. To the extent that witnesses are needed to testify at trial regarding any verified responses, the party representative who verified the responses shall serve as witness. Thus, the Court does not find that counsel’s testimony is genuinely needed at trial. Further,

		the interest of Defendants in representation by counsel of their choice weighs heavily against disqualification in this case, where trial is approximately four months away. Plaintiffs cite <i>Doe v. Yim</i> for the proposition that the term “trial” as used in Rule 3.7 includes a pretrial evidentiary hearing at which counsel is likely to testify. (See <i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 583.) Here, there is currently no such evidentiary hearing anticipated. The discovery disputes can be resolved, as they routinely are, by way of declarations and argument of counsel. Accordingly, the motion is DENIED. Plaintiffs’ requests for judicial notice are denied as immaterial to the disposition of this motion. Clerk to give notice.
4.	30-2024-01412908 DSC41, LLC vs. ERN Trucking, Inc	1. Motion to Be Relieved as Counsel of Record Michael J. Sachs and Scott D. Nelson, Callahan & Blaine, PC (“Moving Counsel”), move to be relieved as counsel of record for Plaintiff, DSC41, LLC. Moving Counsel has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16 based on a breakdown in communications between the client and Moving Counsel, and the client’s conduct which has made it unreasonably difficult for Moving Counsel to effectively carry out the remainder of this representation. (ROA 79, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.) California Rules of Professional Conduct, Rule 1.16(b)(4) provides that a lawyer may withdraw from representing a client if “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.” Moving Attorney has also utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the notice, declaration, proposed order, and service requirements of California Rules of Court, rule 3.1362. The motion to be relieved as counsel of record is GRANTED. “An attorney may be allowed to withdraw without offending the rule against corporate self-representation.” (<i>Thomas G. Ferruzzo, Inc. v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) However, an entity such as Defendant, Electronic Commerce LLC, cannot represent itself. (<i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 n.5.) Defendant, Electronic Commerce LLC, must obtain representation or risk forfeiting important rights through nonrepresentation. (<i>Ibid.</i>) Plaintiff, DSC41, LLC, is ordered to obtain new counsel, and file evidence thereof with the court within 30 days from the notice. (<i>CLD Constr., Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1150 [“[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].) The Court will sign the proposed order and delete the next scheduled hearing date set forth in paragraph 7(a) which is listed as “May 29, 2026, 9:00 AM, Dept. C34 of the above-entitled court,” as well as the trial date set forth in paragraph 9(b) which is listed as “July 20, 2026, 9:00 AM, Dept. C34 of the above-entitled court.”

		The Court will interlineate the current date for the Mandatory Settlement Conference in paragraph 7(a) which is October 9, 2026, at 9:00 a.m. in Department C34, as well as the current date for the jury trial in paragraph 9(b) which is November 23, 2026, at 9:00 a.m. in Department C34. The order relieving counsel Michael J. Sachs and Scott D. Nelson, Callahan & Blaine, PC as counsel of record for Plaintiff is effective upon Moving Counsel filing proof of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
7.	30-2023-01357282 Merino vs. Pacific Coast Patrol, Inc	1. Motions-Other (to Compel Depo & Enforce Subpoena) <u>Motion to Compel Deposition of Defendant’s Person Most Qualified</u> Plaintiff, Steven Merino (“Plaintiff”), moves for an order compelling the Person(s) Most Qualified (“PMQ”) for Defendant, Pacific Coast Patrol, Inc. (“Defendant” or “Pacific Coast Patrol”) to appear and testify and to produce documents specified in the Third Amended Notice of Deposition, as well as an order awarding sanctions in the amount of \$3,060 against Defendant and its attorneys, Knapp, Petersen & Clarke, including handling attorneys Stephen C. Pasarow, Esq., Kevin J. Slack, Esq. and Asante T. Nkosi, Esq. In compliance with the Court’s July 9, 2026, the parties have met and conferred and filed a Joint Statement. (ROA 243.) Plaintiff has also filed an Amended Separate Statement that includes the objections/response to the at issue Third Amended Notice of Deposition and Request for Production of Documents, albeit for all requests. The Court addresses the merits based on what remains in dispute and the contentions set forth in the Joint Statement. Code of Civil Procedure section 2025.450 provides that a party noticing a deposition “may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc. § 2025.450(a).) A motion to compel under this section “shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450(b)(1).) Good cause is shown through “declarations containing <i>specific facts</i> justifying inspection of the documents described in the notice.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group June 2026 update) ¶ 8:801.2.) If the moving party demonstrates good cause, then the opposing party must justify any objections. (<i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) At issue is the Third Amended Notice of Deposition and Request for Production of Documents which Plaintiff served on November 17, 2025, with a deposition date of December 12, 2025. (Declaration of Erik Fritz, ¶ 12, Ex. G.) Defendant served an objection alleging its agreement to comply, but did not

appear, produce documents or file a motion to prevent, protect, or quash the deposition notice. (*Id.*, ¶ 13, Ex. H.) Plaintiff took a certificate of non-appearance after Defendant’s Person Most Qualified (“PMQ”) did not appear on December 12, 2025. (*Id.*, ¶ 14, Ex. I.)

Defendants initially contended that the motion to compel is moot as the deposition of Christian Jordan is scheduled for July 22, 2026. (Stack Decl., ¶ 9.) The reply acknowledged that PMQ deposition is scheduled for July 22, 2026. However, based on the Joint Statement, it appears that the *individual* deposition of Christian Jordan was taken on July 22, 2026, but not completed, not the deposition of Defendants’ PMQ. (Joint Statement, 5:1-2.)

The Joint Statement provides that Defendants are willing to produce for deposition Pacific Coast Patrol’s Person Most Qualified to testify about the enumerated nine categories at a time mutually convenient for all concerned, and that the Person Most Qualified will be Christian Jordan who is the Qualified Manager who runs the day-to-day operations of Pacific Coast Control. (Joint Statement, 4:25-28.)

Based on the foregoing, it appears that no deposition Pacific Coast Patrol’s Person Most Qualified occurred on July 22, 2026.

Under these circumstances, the Court GRANTS the motion to compel the deposition of Pacific Coast Patrol’s Person Most Qualified. Said deposition to be conducted within 30 days, on a date and time that is mutually agreeable to all parties.

With regards to the production of documents, there are 43 document requests.

“Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence . . .” (Code Civ. Proc. § 2017.010.)

This action arises out of a vehicle accident. It is alleged that on or about May 31, 2022, Defendant, Ignacio Martinez (“Martinez”), negligently left his vehicle unattended in the middle of the highway, causing an obstruction and/or hazard, and that Plaintiff’s vehicle collided with the unattended vehicle, as a result. The Complaint asserts two causes of action for motor vehicle negligence and general negligence alleging that Defendant entrusted the motor vehicle to Defendant Martinez, and that Defendant Martinez was the agent and employee and acted within the course and scope of their employment with Defendant. Thus, it appears that Plaintiff asserts that Defendant is vicariously liable for the negligence of Defendant Martinez, and that Defendant negligently entrusted the vehicle to Martinez.

Defendant provides that the following specific requests need the assistance of the court: Request Nos. 9, 13, 14, 15, 19, 20, 26, 31, 33, 35, 36, 41, and 42.

In view of the claims and allegations in this case, Plaintiff does not show good cause through declarations containing specific facts justifying each of the requests. Plaintiff merely provides argument in the Amended Separate Statement.

As to the requests at issue, good cause does not appear on the face of Request No. **9** [All electronically stored information that reflects the state of mind of Plaintiff at the time of the incident]; **19** [A copy of all sub rosa films taken of Plaintiff at the time of, or after, the incident]; **20** [All documents relating to any sub rosa of Plaintiff, including ESI, social media, photos, film, contracts,

scope-of-work agreements, logs, journals, payments, retainers, nondisclosure agreements, and related documents]; **26** [All documents involving ISO claim searches conducted with regard to Plaintiff]; **31** [All documents reflecting the policies and procedures in effect at the time of the incident]; **33** [All documents that identify each contract or agreement for each person involved in supervising the conditions at the subject property where Plaintiff was injured, in effect on the date of the incident]; **35** [All documents that identify each person who had access to any ESI related to the incident before Defendant was on notice of the incident, from the date of the incident]; and **36** [All documents identifying each time over the past 10 years that Defendant reprimanded an employee at the subject property for failing to maintain the subject vehicle in a safe condition].

Therefore, the Court DENIES the motion to compel as to Request Nos. 9, 19, 20, 26, 31, 33, 35, and 36.

However, good cause appears on the face of the remaining requests, including Request Nos. **13** [A copy of each report generated as a result of the incident that is in Defendant's possession, custody, or control, including the control of any agents], **14** [All statements given by Defendant relating to the incident, whether written, oral, or taped], **15** [All statements given by any person relating to the incident, whether written, oral, or taped], **41** [All documents from Defendant's vehicle involved in the incident that were reflective or visible at night]; **42** [All documents that identify communications related to the incident]. The requests themselves seek documents concerning the subject incident.

As to Defendant's objections, Defendant's "concern" that Request Nos. **13, 14, and 15** invade attorney work product and attorney client privileges may be addressed by providing a **privilege log** for such documents.

As to Request No. **41**, Defendant contends that it is unclear what is being sought. It appears that Plaintiff is seeking any documents that were reflective or visible at night that were in Defendant's vehicle involved in the incident. Defendant can provide a response based on its understanding of this request.

As to Request No. **42**, Defendant provides that the request is "overbroad, vague and ambiguous and could improperly seek privileged communications." The request is not overbroad, vague, or ambiguous. Privileged communications may be addressed by providing a **privilege log**.

Based on the foregoing, the Court GRANTS the motion as to Request Nos. 13, 14, 15, 41, and 42 for the production of all responsive, non-privileged documents. To the extent that there are any privileged documents, Defendant may provide a privilege log.

As to the others requests at issue, good cause appears from the face of these requests as they seek documents relevant to the allegations and claims, as well as defenses and Defendant's contentions, in this matter. Significantly, Defendant concedes to producing documents. Defendant states that it "will proceed with producing available documents subject to the below mentioned clarifications and concerns. We would request that it be clarified that the plaintiff is not knowingly seeking communications and information exchanges between defendants and their insurance carrier and counsel." (Joint Statement, 5:13-16.)

Based on the foregoing, and in particular Defendant's concession, the court GRANTS the motion as to Request Nos. 1-8, 10-12, 16-18, 21-25, 27-30, 32, 34, 37-40, 43.

Responsive, non-privileged documents and any privilege log to be produced seven (7) days before the agreed-upon date for the deposition, consistent with the ruling above.

Monetary Sanction

The Court DENIES monetary sanctions.

Motion to Enforce Subpoena

Plaintiff, Steven Merino (“Plaintiff”), moves for an order enforcing the subpoena issued to Uber Technologies, Inc. (“Uber”) on September 9, 2025, issuing evidence and issue sanctions against Uber for failure to comply with the subpoena, and awarding monetary sanctions in the amount of \$2,060 against Uber.

In compliance with the Court’s July 9, 2026, Minute Order, on July 24, 2026, Plaintiff filed a proof of service showing personal service of the moving papers on Uber. (ROA 232.) Therefore, it appears that service has been properly effectuated.

Plaintiff moves to enforce/compel the Subpoena pursuant to Code of Civil Procedure section 1987.1 and 2025.480 on the grounds that Uber has failed to comply with the Subpoena.

No opposition has been filed.

Code of Civil Procedure section 1987.1 provides, in pertinent part: “[T]he court, **upon motion reasonably made** by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it” (Code Civ. Proc. § 1987.1(a).)

A motion under Code of Civil Procedure section 2025.480(a) “shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040.”

Here, the motion was reasonably made under Code of Civil Procedure section 1987.1, and an adequate attempt to meet and confer was made. On September 11, 2025, Plaintiff personally served a Deposition Subpoena for Production of Business Records to Uber Technologies, Inc. (“Uber”), through its registered agent, CT Corporation System, with a production date of October 24, 2025 (the “Subpoena”). (ROA 135, Declaration of Erik Fritz (“Fritz Decl.”), ¶ 11, Ex. D.)

In response, Uber failed to produce any documents, served no objections, filed no motion to quash, and failed to otherwise respond. (Fritz Decl., ¶ 12.) On November 17, 2025, Plaintiff sent a written follow-up letter demanding compliance with the Subpoena, but Uber again failed to respond or produce documents. (Fritz Decl., ¶¶ 12-14, Ex. E.)

Merits

Discovery may be obtained from a third party through a deposition subpoena for the production of business records. (Code Civ. Proc. § 2020.010(a)(3).) A deposition subpoena may command only the production of business records. (Code Civ. Proc. § 2020.020(b).)

A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item. (Code Civ. Proc. § 2020.410(a).) Code of Civil Procedure section 2020.410(c) states, “A deposition subpoena that commands only the production of business records for copying need not be accompanied by an affidavit or declaration showing good cause for the production of the business records designated in it. It shall be directed to the custodian of those records or another person qualified to certify the records. It shall command compliance in

accordance with Section 2020.430 on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later.” (Code Civ. Proc., § 2020.410(c).)

Code of Civil Procedure section 1987.1 provides, in pertinent part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc. § 1987.1(a)-(b).)

Code of Civil Procedure section 2025.480(a) also provides: “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.”

“The nonparty discovery statutes establish a one-step process for a nonparty responding to a business records subpoena.” (*Board of Registered Nursing v. Superior Court of Orange County* (2021) 59 Cal.App.5th 1011, 1033.) “Upon receipt of the subpoena, a nonparty must make the production on the date and in the manner specified, unless grounds exist to object or disregard the subpoena. The nonparty’s compliance with the subpoena is clear on the date specified for production. It has either produced documents as requested in the subpoena, or not. On that date, the subpoenaing party has all of the information it needs to meet and confer regarding the nonparty’s compliance and, if unsatisfied, prepare a motion to compel.” (*Ibid.*) “This one-step process minimizes the burden on the nonparty. It may comply (or not) with the subpoena,” (*Ibid.*)

Here, Plaintiff’s counsel provides that on May 31, 2022, Defendant Ignacio Martinez was walking/running on the freeway after parking his vehicle unattended in the middle of the freeway, creating an obstruction and hazard, and that Plaintiff Merino’s vehicle collided with the unattended vehicle, resulting in bodily injuries and property damage. (Fritz Decl., ¶ 4.) Plaintiff’s counsel also provides that this case is related to another case; that the first case, *Sleiman v. Moreno* (Case No. 30-2023-01323824), was filed on May 4, 2023 by plaintiffs Nicholas Sleiman and McKenzie May, who were passengers in the Uber vehicle driven by Steven Merino, and that these plaintiffs allege personal injuries resulting from the collision and assert negligence claims against Merino, Uber, Rasier LLC, and Rasier-CA LLC; and that instant second action, *Merino v. Pacific Coast Patrol, Inc.* (Case No. 30-2023-01357282), was filed on October 13, 2023, by Steven Merino, the Uber driver involved in the accident. (Fritz Decl. ¶¶ 5-10, Exs. A-C.) The Subpoena consists of 14 document requests seeking audio recordings, written communications, photographs, recorded statements or interviews, transcripts of any recorded statements, and transcripts of any written statements, relating to and/or taken in connection with the subject incident involving the vehicle collision on May 31, 2022 that is the subject of this action. (Ex. D to Fritz Decl.) The documents requests also seek all documents and/or electronically stored information concerning any claims filed in connection with the incident submitted by Plaintiff and by any third party, reflecting any payments issued by Uber and by any insurers in connection with the incident, and relating to the driver history of Plaintiff Merino and relating to the speed, “GPS time-stamped for 30 minutes before until 30 minutes after the crash.” (*Ibid.*) As the document requests seek documents and/or electronically stored information that directly relate to the subject incident of the related matters, there appears to be good cause for these document requests.

Based on the foregoing, the Court GRANTS the motion to enforce the Subpoena and compel compliance.

		<i>Monetary Sanction</i> Plaintiff seeks monetary sanctions against Uber for failure to comply with the Subpoena, requests that Uber pay to Plaintiff the reasonable expenses incurred in bringing this motion, including reasonable attorney’s fees, in the amount of \$2,060.00, pursuant to Code of Civil Procedure sections 2025.480, 1987.1, 2020.240, 2023.010-2023.050, et seq. The court may impose monetary sanctions against anyone engaging in conduct that is a misuse of the discovery process. (Code Civ. Proc. § 2023.030(a).) In light of the Court’s ruling, the Court GRANTS Plaintiff a monetary sanction against Uber in the reduced amount of \$1,310 (2.5 hours x \$500 + \$60 filing fee), to be paid within 30 days. (Code Civ. Proc. §§ 1987.2(a), 2025.480(j), 2023.030(a).) There is no showing that Uber acted with substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Plaintiff also requests an additional sanction of \$1,000 pursuant to Code of Civil Procedure section 2023.050. The notice of motion does not clearly specify that Plaintiff is seeking an additional \$1,000 monetary sanction pursuant to Code of Civil Procedure section 2023.050. Therefore, the request for an additional sanction of \$1,000 is DENIED. Plaintiff to give notice.
8.	30-2024-01442123 Huy vs. Lake Mission Viejo Association	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Production Defendant Park West Landscape Maintenance Inc. (“Defendant”) moves to compel further responses to Requests for Production Nos. 28-30, 34, and 50 plus \$1,845 in sanctions. Defendant also moves to compel further responses to Form Interrogatories Nos. 2.13, 6.5, 8.7, 10.1, and 17.1 plus \$1,845 in sanctions. Plaintiff Nancy Huy (“Plaintiff”) opposes both motions. In her opposition, Plaintiff requests sanctions against Defendant and Defendant’s counsel of record, jointly and severally, in the amount of \$5,500.00 pursuant to Code of Civil Procedure section 2023.010, section 2023.020 and 2023.300(d), for filing procedurally defective motions, failing to properly meet and confer and filing motions that lack merit. Consistent with the Court’s 07/06/2026 order, the Court finds that the motions are timely and the Court will reach the merits of the motions. (ROA 124.) The <u>motion to compel further responses to form interrogatories</u> is GRANTED as to interrogatories 2.13(g) (Plaintiff must state the condition for which the substance was prescribed or furnished), 6.5, and 8.7 (the math provided by Plaintiff does not add up) and DENIED as to 10.1 and 17.1. The <u>motion to compel further responses to requests for production</u> is DENIED as to requests 28-30, 34, and 50.

		Plaintiff shall provide further code compliant responses to the discovery identified above <u>within 30 days of notice of this ruling.</u> All requests for sanctions are DENIED. Defendant to give notice.
10.	30-2024-01372227 Cheng vs. Fang	1. Motion for Leave to File Amended Complaint 2. Motion to Compel Production 3. Motion to Compel Production <u>MOTION FOR LEAVE TO FILE AMENDE COMPLAINT</u> Plaintiff, Jack Cheng moves for an order granting leave to file a Third Amended Complaint. Motion is GRANTED. CCP§473(a)(1), Ca Rules of Court, Rule 3.1324(b)(1)-(4). The Court finds the Motion to be timely. Any prejudice can be mitigated by a trial continuance, if necessary. However, that appears unlikely as the proposed Third Amended complaint is more for clarification purposes than expanding the scope of the litigation. Plaintiff to give notice and separately file the Third Amended Complaint.
11.	30-2023-01336786 Vietnamese American Buddhist Center for Charitable Services vs. Bui	1. Status Conference *No Tentative Ruling for Status Conference*